

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sarah Cornwell	Team: Team # 6	CCRB Case #: 200507940	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 07/01/2005 11:00 PM	Location of Incident: Inside of § 87(2)(b) and later in the 46th Precinct holding cell area	18 Mo. SOL 1/1/2007	Precinct: 46
Date/Time CV Reported Wed, 07/13/2005 11:06 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/13/2005 11:06 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			046 PCT
2. POM Artemio Vega	12533	935916	046 PCT
3. POM Jaime Pedraza	21301	935479	046 PCT
4. POM Shaun Sullivan	27283	935807	046 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Lennox Corlette	02845	934685	046 PCT
2. SGT William Kivlehan	02821	919249	046 PCT
3. SGT Patrick Hennessy	04720	901681	046 PCT
4. POM Jonathan Troncoso	10725	935874	046 PCT
5. POM Gustavo Ayala	21777	934433	046 PCT
6. SGT Denise Reynolds	05240	898366	NARCBMN
7. SGT Daniel Panissidi	05184	904743	PBBX TF
8. POM Malcolm Payne	30218	904763	046 PCT
9. SGT Berenice Navarro	92099	920099	033 PCT
10. LT John Gogarty	00000	888765	046 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Artemio Vega	Abuse: Officer Artemio Vega stopped and questioned § 87(2)(b)	A . Exonerated
B . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza stopped and questioned § 87(2)(b)	B . Exonerated
C . POM Shaun Sullivan	Abuse: Officer Shaun Sullivan stopped and questioned § 87(2)(b)	C . Exonerated
D . POM Artemio Vega	Abuse: Officer Artemio Vega entered 1819 Topping Avenue in the Bronx.	D . Exonerated
E . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza entered 1819 Topping Avenue in the Bronx.	E . Exonerated
F . POM Shaun Sullivan	Abuse: Officer Shaun Sullivan entered 1819 Topping Avenue in the Bronx.	F . Unfounded

Officer(s)	Allegation	Investigator Recommendation
G . POM Artemio Vega	Abuse: Officer Artemio Vega damaged § 87(2)(b) s property.	G . Unsubstantiated
H . An officer	Force: An officer used pepper spray against § 87(2)(b)	H . Exonerated
I . POM Artemio Vega	Force: Officer Artemio Vega used physical force against § 87(2)(b)	I . Exonerated
J . POM Jaime Pedraza	Force: Officer Jaime Pedraza used physical force against § 87(2)(b)	J . Exonerated
K . POM Shaun Sullivan	Force: Officer Shaun Sullivan used physical force against § 87(2)(b)	K . Exonerated
L . Officers	Discourtesy: At the 46th Precinct station house, officers acted rudely toward § 87(2)(b)	L . Officer(s) Unidentified
M . Officers	Force: At the 46th Precinct station house, officers used pepper spray against § 87(2)(b)	M . Officer(s) Unidentified
N . Officers	Force: At the 46th Precinct station house, officers used physical force against § 87(2)(b)	N . Officer(s) Unidentified
O . Officers	Abuse: At the 46th Precinct station house, officers damaged § 87(2)(b) s property.	O . Officer(s) Unidentified

Synopsis

On July 1, 2005, at approximately 11:00 p.m., § 87(2)(b) was sitting on his front stoop at § 87(2)(b) in the Bronx, holding a can of beer. Officer Artemio Vega, Officer Jaime Pedraza, and Officer Shaun Sullivan parked their marked NYPD van and approached § 87(2)(b) to issue him a summons for having an open container of alcohol in public (Allegations A, B, and C). § 87(2)(b) entered the vestibule of his building, and, allegedly, all officers followed him inside (Allegations D, E, and F). In entering, Officer Vega allegedly broke the front door and the lock (Allegation G). These officers brought § 87(2)(b) from the vestibule to the sidewalk in front of his house. § 87(2)(b) pushed, cursed and spat at the officers. An officer allegedly sprayed him with pepper spray (Allegation H). Officers Vega, Pedraza and Sullivan allegedly punched and kicked § 87(2)(b) (Allegations I, J, and K). The officers then handcuffed § 87(2)(b) and called for a supervisor. Sgt. William Kivlehan, Sgt. Patrick Hennessy, and Officer Jonathan Troncoso responded to verify the arrest. § 87(2)(b) was then transported to the 46th Precinct station house and lodged in the holding cell. Officer Lennox Corlette did the arrest processing.

§ 87(2)(b) allegedly asked many officers if he could use a toilet, and was not given an opportunity to do so (Allegation L). § 87(2)(b) then urinated on the ground in the holding cell. A “captain” allegedly told other officers to drag § 87(2)(b) through his urine. § 87(2)(b) alleged that an officer sprayed him with pepper spray again (Allegation M) and several officers punched and kicked his feet, stepped on his head, and dragged him sixty feet to another cell (Allegation N). An officer removed § 87(2)(b)'s shoes and allegedly slashed them (Allegation O).

§ 87(2)(g) it is therefore recommended that Allegations A, B and C be exonerated. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegations D and E be exonerated. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation F be unfounded. § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation G be unsubstantiated. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that Allegation H be exonerated. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that Allegations I, J, and K be unfounded. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that Allegations L, M, N, and O be closed as Officer Unidentified.

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on July 18, 2005 (enc. 6A-6I). § 87(2)(b) stated that on Friday, July 1, 2005 at approximately 11:00 p.m., he bought a 40 oz. bottle of beer in a store and then returned to his home, § 87(2)(b) in the Bronx. § 87(2)(b) watched an NYPD van circle his block once as he rested on the steps of § 87(2)(b) with his unopened beer. He did not want to be around in case there was “trouble,” so he went through the door of § 87(2)(b) into a lobby. While standing in the lobby, he opened the beer and began to drink it. At this point, four uniformed officers appeared at the outer door, knocking. There were two heavy Hispanic male officers who have been identified by the CCRB as Officer Artemio Vega and Officer Jaime Pedraza. There were also two white officers, one of whom the CCRB has identified as Officer Shaun Sullivan.

The officers had flashlights. They said “Police, open up.” § 87(2)(b) said, “Yes sir, what’s the matter, Officers?” The officers told him to open the door and that they wanted to talk to him. § 87(2)(b) asked why, and if they had a warrant. The officers repeated that they needed him to open the door, adding that they were responding to an emergency call. § 87(2)(b) believed that he did not have the authority to let the police into the building as he would let in the fire department. At no point did the officers show § 87(2)(b) a warrant. § 87(2)(b) was unaware of any disturbance in the building and disbelieved the claim that there had been an emergency call because the officers did not supply him with the caller’s name. He told them he thought they had the wrong address. This conversation lasted for two minutes.

One of the officers said, "Break the door." Officer Vega broke the door down and all four officers entered the building. The wood around the door was broken, and the lock came off. One of the Hispanic officers punched § 87(2)(b) in the mouth and in the chest. § 87(2)(b) said, "Listen, you can't do that. You want to arrest me, arrest me. But don't assault me." He pushed this officer away. § 87(2)(b) called the officers names and spat blood. Another officer approached him, and § 87(2)(b) pushed him harder and held him away by the arms. All four officers grabbed § 87(2)(b) and brought him outside, where they kicked and punched him all over his torso. On the way out, one of the Hispanic officers sprayed mace in § 87(2)(b)'s face. An officer said, "Throw him down over there." Halfway down the set of five or six stairs outside of the building, the officers threw § 87(2)(b) forward such that he fell face down on the ground. Then, they put § 87(2)(b)'s hands behind his back and handcuffed him. Lying on the ground, § 87(2)(b) felt a foot on his neck. § 87(2)(b) stated that he struggled because it seemed that the officers were preparing to throw him down the stairs.

One of the white officers emptied the beer § 87(2)(b) had been holding and threw it in the garbage can across the street from the building. The officers dragged § 87(2)(b) to the parked police van such that only his feet were in contact with the ground and drove him to the 46th Precinct. On the way, one officer said, "If you spit again in the police car, I'm going to put a mask on you," but § 87(2)(b) did spit again because he was bleeding. § 87(2)(b) did not notice any witnesses to the incident in front of § 87(2)(b).

§ 87(2)(b) was placed in a holding cell and his wallet was taken away from him. § 87(2)(b) asked five or six times of numerous officers working in the holding cell area if he could use a bathroom, and these officers walked away without answering him. He asked some of these officers while he was lying down, and so did not see them to identify them. § 87(2)(b) explained that he had a doctor's letter in his confiscated wallet, which detailed the medical condition that causes him to urinate frequently. Other prisoners were also asking to use a bathroom. § 87(2)(b) told officers he would have to urinate in the cell if he were not shown to a bathroom. Standing inside the cell, he urinated through the cell bars, creating a puddle both inside and outside of the cell. No officers were watching § 87(2)(b) at this time, and the other prisoners in the cell said nothing. Several minutes later, a Hispanic female officer in plain clothes whom § 87(2)(b) identified from a photo array as Sgt. Berenice Navarro, returned to the cell area, saw this and left. She returned with a sergeant, one of the Hispanic officers who apprehended § 87(2)(b) and one of the white officers who apprehended him.

This sergeant asked who had urinated. § 87(2)(b) said, "Me." The sergeant said, "Grab him and put his face in it." At another point in the interview, § 87(2)(b) reported that the sergeant said, "Throw him down and put his face in it and drag him in it." § 87(2)(b) responded, "No you're not," and the white and Hispanic officers said, "Yes we are. We are taking you down." The Hispanic officer who apprehended him and another Hispanic officer told him to put his hands behind his back and when he did so, they handcuffed him. They punched him and kicked at his feet to bring him to the floor.

An officer sprayed mace in § 87(2)(b)'s face, though § 87(2)(b) did not know which one. § 87(2)(b) landed hard on his knees and the officers pushed him to the floor partially outside of the cell. The officers removed his sneakers and the white officer who apprehended him cut his pocketknife and keys from him. § 87(2)(b) did not see who removed the shoelaces from his sneakers, but showed the sneakers during the course of this interview, one gashed through the toe, the other gashed along the side. The Hispanic officer who apprehended him and the other present Hispanic officer dragged him sixty feet to a new cell, kicking him and stepping on his head. § 87(2)(b) stated that he passed many cells and rounded two corners on the way to the new cell. § 87(2)(b)'s stomach and face were in contact with the floor while being dragged. At another point during the interview, § 87(2)(b) stated that he was face up and the officers had him by the arms such that his legs and side were on the ground, his arms hitting against objects on the way. He felt more pain in his face as a result of the second application of mace, because, he believed, of the addition of urine. Once locked in the new cell, § 87(2)(b) said to the Hispanic officer who apprehended him, "I'm going to make sure I get you. Don't think you're going to get away, 'cause you're not going to get away." § 87(2)(b) stayed in this second cell, which contained a toilet, for two hours with his handcuffs on until he was released.

When § 87(2)(b) went to court on § 87(2)(b), he saw no judge or lawyer. He was dismissed without explanation or documentation and told not to say anything to anybody about this. He understood that the charges against him were "hindering the investigation" and "harassment." § 87(2)(b) did not go to the ER immediately after his release because he had to have new keys made, since his keys had not been returned to him at the precinct. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b).

§ 87(2)(b), where x-rays were taken and § 87(2)(b) was told he had suffered trauma to the left knee. He was given a painkiller, anti-bacterial ointment, and a tetanus shot. Notes were made of injuries on his elbow, wrists and left knee.

§ 87(2)(b) provided the CCRB with photographs of bruises on his elbows and legs and damage to the lock on the front door of his building (enc. 6E-6H).

§ 87(2)(b) filed a notice of claim against New York City on § 87(2)(b) for one million dollars (enc. 7A-7B). This claim regards personal injury to § 87(2)(b) resulting from an assault by New York City Police Officers and the entry of § 87(2)(b)'s property without a warrant or probable cause.

§ 87(2)(b) viewed three photo arrays at the CCRB on May 18, 2006 (enc. 8A-8E). In the first array, § 87(2)(b) identified Officer Malcolm Payne as the officer who dragged him in urine. In the second array, § 87(2)(b) made no identifications. In the third array, § 87(2)(b) was not sure if he recognized two officers, one of whom was Officer Berenice Navarro.

After these photo arrays were conducted, § 87(2)(b) was shown ten photographs of potential subject officers of another complaint, CCRB no. 200509490. One of these § 87(2)(b) identified as a subject officer of this case. That was Lieutenant John Gogarty of the 46 Detective Squad. § 87(2)(b) marked on his picture "Looks like captain who ordered other officers to drag me in urine."

Results of Investigation

Attempts to Contact Witnesses

The undersigned investigator contacted § 87(2)(b)'s landlord, § 87(2)(b), who indicated that a tenant named § 87(2)(b) had witnessed the incident. § 87(2)(b) told the undersigned investigator that he had not witnessed the incident, but that other neighbors had told him that they witnessed it. § 87(2)(b) was unable to name or describe these people beyond their genders. § 87(2)(b) gave the name of a neighbor, § 87(2)(b), as a witness, and provided a phone number for him, which proved to have been disconnected. The undersigned investigator canvassed for witnesses at § 87(2)(b) on August 22, 2005, and no person questioned on that date recalled the incident. Flyers were left for residents of § 87(2)(b) and in the residence of § 87(2)(b) who was not home. Agency databases yielded no alternate contact information for § 87(2)(b). No witness responded to any of these contact attempts.

Officer Statement: Artemio Vega

Officer Artemio Vega completed the complaint report and arrest report for § 87(2)(b) and passed these documents off to Officer Lennox Corlette to finish because he had to leave the precinct on personal business. The complaint report indicates that § 87(2)(b) had an open container of beer in a public place, and that when Officer Vega approached him, § 87(2)(b) pushed, shove, and spat on Officer Vega, as well as waving his arms and "leaving the area." It also shows that Sgt. Kivlehan was the supervisor on scene (enc. 10A-10B). The arrest report indicates that § 87(2)(b) was charged with § 87(2)(a) 160.50. Force was used to restrain § 87(2)(b). No officers were injured (enc. 11A-11C).

Officer Vega was interviewed at the CCRB on October 25, 2005 (enc. 12A-12B). On July 1, 2005, Officer Vega worked from 7:00 p.m. to 4:35 a.m. on impact overtime with Sgt. Patrick Hennessy. He was in uniform, assigned to patrol van 5931. The relevant entry in his memo book was limited to summons numbers, and is reproduced in the case file (enc. 9A-9B).

Officer Artemio Vega, Sgt. Patrick Hennessy, and several other officers who may have included Officer Jaime Pedraza, Officer Gustavo Ayala and Officer Jonathan Troncoso, were in their patrol van, issuing summonses in the 46th precinct. Officer Lennox Corlette was not present. Officer Vega observed a man, later identified as § 87(2)(b) drinking a 40 oz. beer in plain view on the sidewalk in a residential neighborhood. He was sitting on the three or four-stair stoop of an apartment building. Officer Vega observed no other individuals at the location. The officers parked in front of the building. § 87(2)(b) got up and started walking toward the building. The officers got out of the van and called to him to come over so they could speak to him. § 87(2)(b) ran into the building, closing the door behind him. The officers followed, and Officer Vega, turning the doorknob, found the door unlocked. § 87(2)(b)

§ 87(2)(b) tried to push the door shut as the officers tried to push it open. Officer Vega asked § 87(2)(b) to come out and talk to them and show his ID, explaining that he was going to be issued a summons for his open container of alcohol. There was one door between the street and the building's staircase. At no point did Officer Vega tell § 87(2)(b) that the officers were responding to an emergency call. Officer Vega received no intelligence of emergency situations at this location and was unaware of any person in the neighborhood calling 911.

Officer Vega pushed the door open and entered the vestibule, followed by another officer whose identity he could not recall. At no point did Officer Vega break the door of the building. In the vestibule, § 87(2)(b) pushed and cursed at, and spat at Officer Vega and to a lesser degree did so to the other officer. He used two hands to push Officer Vega in the chest and arms. He yelled, "Fucking assholes, get the fuck out of here, I'll kick your ass." The two other officers remained outside. Officer Vega and the other officer in the vestibule brought § 87(2)(b) out of the building, standing at § 87(2)(b)'s sides and holding him by the arms. On the way to the car, § 87(2)(b) resisted by continuing to push the officers and spit, but he did walk with the officers. Officer Vega and § 87(2)(b) had been in the vestibule for less than a minute. At no point did Officer Vega kick or punch § 87(2)(b) or witness any other officer do so. Officer Vega did not spray § 87(2)(b) with pepper spray, but was unsure whether or not another officer did so. He said that it would have been reasonable for an officer to use pepper spray based on § 87(2)(b)'s behavior. Officer Vega did not remember any officer saying, "Throw him down over there," or seeing any officer throw § 87(2)(b) down stairs.

Once they reached the sidewalk, Officer Vega and another officer wrestled § 87(2)(b) to the ground in order to handcuff him. Each officer put his hands on one of § 87(2)(b)'s arms and pulled downward. § 87(2)(b) was lying on his side, perpendicular to the sidewalk, and the officers turned him onto his stomach. § 87(2)(b) resisted this by squirming and moving his arms. Officers stood on each side of him and forced his arms behind him. The officers handcuffed § 87(2)(b) on the ground; Officer Vega did not recall whether he handcuffed § 87(2)(b) or held his arms for another officer to handcuff him. At no point did any officer put a foot on § 87(2)(b)'s neck. At no point did Officer Vega hear any officer threaten to put a mask on § 87(2)(b). After § 87(2)(b) was handcuffed, the officers waited for several minutes for supervisors, who may have been Sgt. William Kivlehan and/or Sgt. Patrick Hennessy. Officer Vega informed his supervisor of the information contained in the above summary, and § 87(2)(b) was taken directly to the precinct, where his arrest was processed for § 87(2)(a) 160.50.

Officer Vega lodged § 87(2)(b) in the holding cell around 11:45 p.m., but that was the extent of their interaction after the initial pickup. Officer Corlette was the arresting officer. Officer Vega explained the situation to Officer Corlette at the station house. Officer Vega did not notice any visible injuries on § 87(2)(b) and § 87(2)(b) never complained of any injury. Officer Vega stated that nothing occurred during his interaction with § 87(2)(b) that might have caused physical injuries. Officer Vega heard nothing about § 87(2)(b) after the incident, and was unaware of any unusual occurrence in the holding cell area during the time that he was held. He heard nothing about a prisoner urinating in the holding cell area.

Officer Statement: Officer Jaime Pedraza

Officer Jaime Pedraza was interviewed at the CCRB on March 28, 2006 (enc. 14A-14B). At 11:00 p.m. on July 1, 2005, Officer Pedraza worked from 8:00 p.m. to 4:35 a.m. on Impact overtime. This was his RDO. He worked in uniform with Officer Artemio Vega and Officer Shaun Sullivan, assigned to a van. Officer Pedraza had no relevant entries in his memo book (enc. 13A-13B).

§ 87(2)(g). He also noted that § 87(2)(b) seemed drunk or high during the incident and that he yelled and mumbled loudly enough to cause a disturbance. Officer Pedraza described § 87(2)(b) falling to the sidewalk, § 87(2)(g). According to Officer Pedraza, § 87(2)(b) fell to his knees while officers had hands on his arms to handcuff him, but the reason for this was not force used by officers. He fell sideways so that his shoulder was on the ground.

The officers then called for a supervisor and Sgt. Kivlehan arrived at the location shortly thereafter. While waiting for a supervisor, § 87(2)(b) continued to yell and mumble, often saying the word, "white." The officers had pulled him to his feet, and everyone was standing while they waited for the supervisor. Officer Pedraza did not recall if the man was placed in the van before or after Sgt. Kivlehan

arrived. He did recall Sgt. Kivlehan standing outside the van, and the man inside the van trying to spit at the officers through the narrow crack of the window. When § 87(2)(b) was transported to the precinct in the van, he had no visible injuries. No civilians were outside in the neighborhood during this incident. Officer Pedraza was at the location for about five minutes. Officer Pedraza said that the officers were carrying pepper spray, but at no point did any officer take his pepper spray out, and at no point was the man sprayed with pepper spray. Officer Pedraza denied all allegations of force. Officer Pedraza did not see § 87(2)(b) in the holding cell area.

Officer Statement: Officer Shaun Sullivan

Officer Shaun Sullivan was interviewed at the CCRB on April 11, 2006 (enc. 16A-16B). On July 1, 2005, Officer Sullivan worked from 8:00 p.m. to 4:35 a.m. on Impact. He was in uniform, assigned to a van with Officer Jaime Pedraza and Officer Artemio Vega. On the night in question, Officers Sullivan, Vega, and Pedraza were looking for quality of life issues such as marijuana and open containers of alcohol. Officer Sullivan had no relevant entries in his memo book (enc. 15A-15B).

§ 87(2)(g) . Officer Sullivan did not enter the vestibule of § 87(2)(b) . All three officers asked § 87(2)(b) to leave the building, and he voluntarily walked into the street, though he did not stop yelling and flailing his arms. He was not in physical contact with any officer as he walked to the street. Officer Vega decided that § 87(2)(b) should be arrested § 87(2)(a) 160.50 . As Officer Vega tried to put a handcuff on § 87(2)(b) he resisted, pulling his arms away and moving them around. Officers Vega and § 87(2)(b) then fell to the ground; Officer Sullivan could not tell if this occurred due to force used by officers or § 87(2)(b)'s own movement. All three officers handcuffed § 87(2)(b) together. Prior to the handcuffing, there had been no physical contact between § 87(2)(b) and the officers. Officer Sullivan did not recall whether or not supervisors responded to the scene. Officer Sullivan did not interact with § 87(2)(b) after his apprehension, and heard nothing about an incident in the station house involving a struggle or a prisoner urinating. Officer Sullivan denied all allegations of force and property damage, and did not recall anything § 87(2)(b) said during the incident. § 87(2)(b) had no visible injuries at the end of this incident.

Officer Statement: Sergeant William Kivlehan

Sergeant William Kivlehan was first interviewed at the CCRB on December 1, 2005 (enc. 18A-18B). On July 1, 2005, Sgt. Kivlehan worked from 5:15 p.m. to 2:12 a.m. in uniform. He was assigned to impact but he did not recall with whom he was working. His memo book entry is reproduced in this case file (enc. 17A-17B). He did not remember the incident in question. Sgt. Kivlehan was given a synopsis of the incident and shown photographs of § 87(2)(b) but did not recall this incident.

Sergeant William Kivlehan was interviewed again at the CCRB on January 24, 2006 (enc. 19A-19B). He had remembered the incident subsequent to his initial CCRB interview. On July 1, 2005, Sgt. Kivlehan was patrol supervisor, working with Sgt. Patrick Hennessy. He was in uniform, assigned to a marked car.

Sgt. Kivlehan and Sgt. Hennessy were called to § 87(2)(b) to verify an arrest. About three officers were at the location. In the back of their car, they had a perpetrator identified by the CCRB as § 87(2)(b) . Sgt. Kivlehan did not recall anything about the appearance of § 87(2)(b) , but recalled that he was spitting and cursing, with slurred speech. He appeared intoxicated. Sgt. Kivlehan did not notice that § 87(2)(b) had any visible injuries. The officers informed Sgt. Kivlehan that they had stopped to issue a summons for drinking to § 87(2)(b) and that he had then gotten in a fight with them. They had used pepper spray against him and handcuffed him. Sgt. Kivlehan verified the arrest and the officers took § 87(2)(b) back to the precinct in the van. Sgt. Kivlehan never interacted with § 87(2)(b) verbally or physically, in any location, and never saw him at the precinct.

Officer Statement: Sergeant Patrick Hennessy

Sergeant Patrick Hennessy was interviewed at the CCRB on January 18, 2006 (enc. 20A-20B). On July 1, 2005, Sgt. Hennessy worked a day tour and then a night tour, from 5:15 p.m. to 2:12 a.m. He was the Impact Sergeant, working with Sgt. Kivlehan. He was assigned to an RMP, in uniform, and had no relevant memo book entries.

Sgt. Hennessy recalled being called by Officer Artemio Vega to § 87(2)(b) Avenue, where Officer Vega had made an arrest. § 87(2)(g) Sgt. Hennessy made the command log entry noting § 87(2)(b)'s arrest. While he was processed, § 87(2)(b) continued to curse. Sgt. Hennessy was at the location for no more than two minutes and never interacted with § 87(2)(b). He saw no visible injuries on § 87(2)(b) and never heard him request medical treatment. Sgt. Hennessy did not recall hearing about any incident involving this individual's actions in the holding cell, and specifically did not hear of any incident involving urination in the holding cell or a physical struggle. Sgt. Hennessy said that there is no toilet in the rear cells at the 46th Precinct, where new arrests are taken.

Officer Statement: Officer Jonathan Troncoso

Officer Jonathan Troncoso was interviewed at the CCRB on March 2, 2006 (enc. 22A-22). On July 1, 2006, Officer Troncoso worked overtime from 3:00 p.m. to 2:05 a.m. He was in uniform, assigned as operator for Sgt. Patrick Hennessy and Sgt. William Kivlehan. They were all assigned to one motor vehicle. Officer Troncoso had no relevant memo book entries (enc. 21A-21B).

Officer Troncoso and the sergeants responded to an arrest at § 87(2)(b) Avenue. § 87(2)(g) he recalled that those two sergeants did interact with the individual identified by the CCRB as § 87(2)(b).

Both Sgt. Hennessy and Officer Vega approached § 87(2)(b) to get him to calm down, and at this, he threatened to spit on them. They spoke to him through the open passenger door. Sgt. Hennessy told § 87(2)(b) that the officers couldn't talk to him while he was spitting on people. He made racial comments, calling officers "whitey" and accusing them of racism, and of being the devil. He appeared intoxicated and had no visible injuries. Officer Troncoso did not know if he had been sprayed with pepper spray, and thought it was not possible that he had been sprayed, since the spray smells distinctive and he did not pick up on that smell at this location. Officer Troncoso was not aware of a later incident in the holding cell area involving § 87(2)(b).

Officer Statement: Officer Lennox Corlette

Officer Lennox Corlette was interviewed at the CCRB on January 20, 2006 (enc. 24A-24B). At 11:00 p.m. on July 1, 2005, Officer Corlette was working a tour from 4:00 p.m. to 12:35 a.m. assigned to Impact. He was on a footpost, alone, in uniform. He had an entry in his memo book reading "2335: arrest made by Officer Vega, assigned to myself Officer Corlette. 0035 hrs § 87(2)(b), § 87(2)(b). 0600: E.O.T Officer Corlette" (enc. 23A-23B). At the time of this incident, Officer Corlette had just graduated from the Police Academy and was new on the job.

Officer Vega assigned Officer Corlette the arrest of § 87(2)(b) at the front desk after he himself had done most of the processing. Officer Vega had to leave the precinct on personal business. Officer Vega informed Officer Corlette that § 87(2)(b) had been issued a summons § 87(2)(b), and that he had struck and spit at Officer Vega. Officer Corlette put his name on the pedigree sheet and in OLBS and went into the holding cell area to see who he was processing. § 87(2)(b) was standing and yelling, and appeared drunk. Officer Corlette was in the holding cell area for roughly thirty seconds, and did not hear § 87(2)(b) request to use the bathroom.

Officer Corlette heard from another officer later that night that § 87(2)(b) had urinated in the holding cells. Officer Corlette did not recall who the holding cell attendant was. Officer Corlette went home after he processed § 87(2)(b) and dealt with a malfunctioning fax machine to fax the arrest paperwork until 6:00 a.m. He did not know when § 87(2)(b) was removed from the precinct.

Officer Statement: Sergeant Daniel Panissidi

Sergeant Daniel Panissidi was interviewed at the CCRB on April 14, 2006 (enc. 26A-26B). Sgt. Panissidi worked a midnight shift from July 1 to July 2, 2005, from 11:05 p.m. to 8:02 a.m. at the 46th Precinct. Sgt. Panissidi had no relevant memo book entries (enc. 25A). Sgt. Panissidi had no recollection of this tour, did not recognize § 87(2)(b) from a photograph, and did not have any recollection of the incident. He said that he would have been aware if a prisoner urinated in the holding cell. He did not recall any prisoner being moved from cell to cell, though he did confirm that there is a holding cell in the Precinct which does not contain a toilet, and that there are cells across the Precinct which do contain toilets. To get to these cells from the holding cell, you have to go through the desk area.

Officer Statement: Sergeant Denise Reynolds

Sergeant Denise Reynolds was interviewed at the CCRB on April 11, 2006 (enc. 28A-28B). Sgt. Reynolds worked from 3:00 p.m. to 11:00 p.m. as desk officer at the 46th Precinct on July 1, 2005. She was in uniform. She had no relevant entries in her memo book because she left the station house before § 87(2)(b) was brought in (enc. 27A). She was shown a photograph of § 87(2)(b) and did not recognize him, nor did she remember any specific arrest made by Officer Vega on that day. She did not recall any struggle occurring in the holding cell area, and said that she would have been aware of such a struggle if it happened while she was assigned to the desk.

Officer Statement: Officer Malcolm Payne

Officer Malcolm Payne was interviewed at the CCRB on May 30, 2006 (enc. 30A-30B). He stated that on July 2, 2005, he was working from 10:15 p.m. to 7:50 a.m. as the arrest processing officer at the 46th Precinct. He was in uniform, working with the desk officer. This assignment entails helping officers process new arrests and fill out arrest documentation. Officer Payne said that if a prisoner gets “rowdy,” an APO might go back into the holding cell area to back up other officers. Officer Payne had no entries in his memo book regarding the incident, and did not recall the incident or recognize § 87(2)(b) from a photograph. There are no events noted in his memo book during that tour, which indicates that Officer Payne was not personally responsible for any arrests (enc. 29A-29B). Officer Payne did not recall whether or not he went into the holding cell area during that tour. He was “limited,” meaning that he could not leave the station house. He had heard of no incident involving a prisoner being dragged through urine.

Officer Statement: Sgt. Berenice Navarro

Sgt. Berenice Navarro was interviewed at the CCRB on August 2, 2006 (enc. 31A-31B). At the time of the incident, Sgt. Navarro held the rank of Police Officer. She did not have her memo book from 2005 with her, but agreed to fax in the relevant entry. Sgt. Navarro held the rank of Police Officer on the date of incident, July 1, 2005. Sgt. Navarro had no recollection of § 87(2)(b) or of any incident in which a prisoner urinated in the 46th Precinct holding cell area prior to struggling with officers. She had never seen a prisoner urinate in the holding cell.

Officer Statement: Lt. John Gogarty

§ 87(2)(b) identified Lt. John Gogarty from a photo array as a subject officer of this complaint. Lt. Gogarty was notified for a CCRB interview on May 19, 2006, but called the undersigned investigator with the information that he did not work on July 1 or 2, 2005. § 87(2)(g)

Officer Statement: Officer Gustavo Ayala

Officer Gustavo Ayala was interviewed at the CCRB on March 28, 2006 (enc. 34A-34B). At 11:00 p.m. on July 1, 2005, Officer Ayala was working a 4:00 p.m. to 12:35 a.m. tour, assigned to footpost two with no partner or motor vehicle. He did not work with Officer Vega on the night in question. Officer Ayala heard nothing about a prisoner urinating on the ground or engaging in an altercation with officers in the holding cell area on the date in question, nor was he in the holding cell area at all on this date. He had no relevant entries in his memo book (enc. 33A).

Medical Records

§ 87(2)(a) PBH §18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

NYPD Documents

The 46th Precinct tour three roll call from July 1, 2005, shows that Sgt. Kivlehan was the patrol supervisor, Sgt. Hennessy was working a double tour, and Officers Corlette and Ayala were on patrol (enc. 36A-36D). The 46th Precinct tour one roll call from July 2, 2005 shows that Officers Payne and Navarro were working in the station house (enc. 37A). The 46th Precinct command log from 6:30 p.m. to midnight on July 1, 2005, shows that Sgt. Reynolds was the desk officer until Sgt. Panissidi took over at 11:10 p.m. Officer Troncoso requested overtime at 10:25 p.m. Officer Payne took over Desk Security at 11:35 p.m. § 87(2)(b) was arrested at 11:45 p.m. and taken to Central Booking at 3:05 a.m. (enc. 38A-38D).

The 46th Precinct daily vehicle assignment sheet shows that marked van number 5931 was assigned to the station house during tour three on July 1, 2005 (enc. 39A). No injuries are visible in § 87(2)(b)'s arrest photograph (enc. 40A). The sprint from this incident shows that § 87(2)(b) was stopped at 11:30 p.m. His arrest by the tour three Impact sergeant is noted at 1:14 a.m. (enc. 41A). The 46th Precinct did not provide the CCRB with the requested holding pen roster from the date in question, marking the request, "unable to locate" (enc. 45L).

Court Documents

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

CCRB Histories

Officers Vega, Pedraza and Sullivan have all been Members of Service for two years. This is the first CCRB complaint against each of them, and the only one against Officers Vega and Sullivan (enc. 3A-3C). Officer Pedraza is the subject of another investigation, in which it is alleged that he stopped an individual, frisked and searched an individual, and searched a vehicle.

§ 87(2)(b) has a previous CCRB complaint that is currently under investigation, CCRB no. 200507940. § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Conclusions and Recommendations

Officer Identification

Officers Vega and Corlette and Sgt. Kivlehan were identified from § 87(2)(b)'s arrest report (enc. 11A-11C). The 46th Precinct command log shows that Sgt. Reynolds was the desk officer whom Sgt. Panissidi relieved at 11:10 p.m. (enc. 38A-38D). Officers Sullivan, Pedraza and Troncoso were working Impact overtime on the date in question, and do not appear on any roll call. Officers Pedraza and Troncoso, along with Officer Ayala and Sgt. Kivlehan, were named by Officer Vega in his CCRB statement. § 87(2)(g)

§ 87(2)(b) viewed three photo arrays on May 18, 2006, at which time he recognized Officers Payne and Navarro, and claimed that these officers were present for the struggle in the station house.

Police documents confirm that Officers Payne and Navarro were working in the station house at the time of the incident.

Undisputed Facts

Around 11:00 p.m., § 87(2)(b) was sitting on the stoop of § 87(2)(b) holding a beer. Officers Vega, Pedraza and Sullivan exited a marked van and approached § 87(2)(b). § 87(2)(b) went inside § 87(2)(b) where he resides. Officers Vega and Pedraza followed him into the vestibule of that building. A physical struggle ensued, during which § 87(2)(b) called the officers names and spat blood at them. § 87(2)(b) was conveyed to the sidewalk in front of his building, where the officers handcuffed him. The officers then drove him to the 46th Precinct and lodged him in the holding cell.

§ 87(2)(g)

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

It is undisputed that Officers Vega, Pedraza and Sullivan did stop and question § 87(2)(b) and that Officers Vega and Pedraza did enter the vestibule of § 87(2)(b). § 87(2)(b) alleged that four officers entered the building, § 87(2)(g).

§ 87(2)(b) alleged that Officer Vega broke down the front door of § 87(2)(b). According to § 87(2)(b) he closed the door after entering the building's vestibule, and the officers told him to "open up" because they were responding to an emergency call. Then, one of the officers said, "break the door," and Officer Vega did so, causing the wood around the door to break and the lock to fall off. Officer Vega stated that when § 87(2)(b) entered the building, he closed the door but did not lock it. Officer Vega pushed the door open, and § 87(2)(b) tried unsuccessfully to push it shut. Officer Pedraza did not describe any door being breached, but did say that he and Officer Vega brought § 87(2)(b) out of the vestibule of the building. Officer Sullivan did not describe a door either, but stated that § 87(2)(b) walked from the building's vestibule to the street in compliance with police orders, before any officer touched him. § 87(2)(b) provided blurry photographs of a crack in a wooden doorframe below a small metal lock. The undersigned investigator saw this small crack at the incident location, but also noted that the building was not in perfect condition. § 87(2)(g)

§ 87(2)(b) alleged that either Officer Vega or Officer Pedraza punched him in the mouth and chest while they were inside the vestibule. § 87(2)(b) said that he pushed the two Hispanic officers, called them names, and spat blood at them. Then, all officers present brought § 87(2)(b) outside, where they all kicked and punched him. One of the Hispanic officers sprayed § 87(2)(b) with pepper spray, and then the officers threw § 87(2)(b) down five or six stairs such that he landed face down on the ground. While § 87(2)(b) was being handcuffed, an officer allegedly put his foot on § 87(2)(b)'s neck. Officer Vega denied all allegations of excessive force. He said that § 87(2)(b) resisted by pushing, cursing, and spitting at the officers, and that he squirmed and moved his arms when the officers pulled him to the ground to handcuff him. Officer Vega denied using pepper spray against § 87(2)(b) but did not know if another officer did so. Officers Pedraza and Sullivan denied all allegations of excessive force including the use of pepper spray, and both described § 87(2)(b)'s handcuffing as having taken place on the ground. Officers Vega, Pedraza and Sullivan stated that § 87(2)(b) had no visible injuries when he arrived at the 46th Precinct. § 87(2)(b)'s medical records show that he incurred minor injuries, for which he sought treatment § 87(2)(b) days after the incident. He never requested

medical attention while at the 46th Precinct—§ 87(2)(g)

Sgt. Kivlehan and Sgt. Hennessy said that Officer Vega informed them at the scene that § 87(2)(b) had been sprayed with pepper spray. § 87(2)(g)

§ 87(2)(b) alleged that in the 46th Precinct holding cell, he requested to use a bathroom many times of multiple officers, and no officer allowed him to do so. § 87(2)(b) urinated on the floor, and when officers noticed this, they approached him and handcuffed him again in the cell. § 87(2)(b) said that one of the Hispanic officers who had been present for his arrest was present in the station house. § 87(2)(b) He identified three officers from photographs as having been present for the incident in the station house: Sgt. Navarro, Lt. Gogarty, and Officer Payne. He also described an unidentified white male officer and an unidentified Hispanic male officer. § 87(2)(b) alleged that Lt. Gogarty told the officers to drag § 87(2)(b) in his urine, and then the above listed officers pushed § 87(2)(b) to the floor, removed and slashed his sneakers, punched and kicked him, and sprayed him with pepper spray. Then, either Officer Vega or Officer Pedraza dragged him sixty feet, kicking him and stepping on his head. § 87(2)(b) first stated that during this drag he was face down, and when questioned later, said that he was face up. § 87(2)(g)

In fact, none of the officers who were allegedly present in the station house during this latter part of the incident recognized § 87(2)(b) from photographs or recalled this incident at all. None of the officers present for the arrest of § 87(2)(b) at § 87(2)(b) recalled hearing anything about a prisoner urinating in the holding cell on the date in question. Officer Corlette, who took over the arrest processing from Officer Vega, said that he went into the holding cell to see who § 87(2)(b) was, and at that point, § 87(2)(b) was standing and yelling, and appeared drunk. Sgt. Kivlehan, Officer Pedraza, Officer Corlette and Officer Troncoso all specified that § 87(2)(b) seemed intoxicated. Officer Corlette did not hear § 87(2)(b) request to use a bathroom. However, Officer Corlette did hear from another officer later that night that § 87(2)(b) had urinated in the holding cell. § 87(2)(g)

Allegation A) At § 87(2)(b) in the Bronx, Officer Artemio Vega stopped and questioned

§ 87(2)(b)

Allegation B) At § 87(2)(b) in the Bronx, Officer Jaime Pedraza stopped and questioned

§ 87(2)(b)

Allegation C) At § 87(2)(b) in the Bronx, Officer Shaun Sullivan stopped and questioned

§ 87(2)(b)

It is undisputed that § 87(2)(b) was sitting on the front steps of the building in which he lives, holding a beer. According to Barry Kamins, “New York courts have found the backyard, porch and front stoop of a house and a flowerbed immediately behind a house to be protected by the Fourth Amendment because an individual will have a reasonable expectation of privacy in these areas” (enc. 1A). § 87(2)(g)

§ 87(2)(g) This document states that consumption of alcohol in public is prohibited, and defines a public place as “A place to which the public or a substantial group of persons has access. This includes, but is not limited to, any street, highway, parking lot, plaza, transportation facility, school, place of amusement, park, playground, hallway, lobby and other portion of an apartment, house or hotel not constituting a room or apartment designed for actual residence” (enc. 2B). § 87(2)(g)

It is therefore recommended that Allegations A, B, and C be exonerated.

Allegation D) Officer Artemio Vega entered § 87(2)(b) in the Bronx.

Allegation E) Officer Jaime Pedraza entered § 87(2)(b) in the Bronx.

§ 87(2)(g)

The Police Student’s Guide specifies that if an individual commits a violation in an officer’s presence, the officer may pursue the individual to effect an arrest (enc. 2C).

§ 87(2)(g) It is therefore recommended that Allegations D and E be exonerated.

Allegation F) Officer Shaun Sullivan entered § 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that four officers entered his vestibule, § 87(2)(g) It is therefore recommended that Allegation F be unfounded.

Allegation G) At § 87(2)(b) in the Bronx, Officer Vega damaged § 87(2)(b)s property.

§ 87(2)(g) It is therefore recommended that Allegation G be unsubstantiated.

Allegation H) At § 87(2)(b) an officer used pepper spray against § 87(2)(b)

§ 87(2)(g)

Allegation I) At § 87(2)(b) in the Bronx, Officer Artemio Vega used physical force against § 87(2)(b)

Allegation J) At § 87(2)(b) in the Bronx, Officer Jaime Pedraza used physical force against § 87(2)(b)

Allegation K) At § 87(2)(b) in the Bronx, Officer Shaun Sullivan used physical force against § 87(2)(b)

Officers Vega, Pedraza, and Sullivan denied all allegations of physical force leveled by § 87(2)(b) § 87(2)(g) It is therefore recommended that Allegations I, J and K be exonerated.

Allegation L) At the 46th Precinct station house, officers acted rudely toward § 87(2)(b)

Allegation M) At the 46th Precinct station house, an officer used pepper spray against § 87(2)(b)

Allegation N) At the 46th Precinct Stationhouse, officers used physical force against § 87(2)(b)

Allegation O) At the 46th Precinct station house, officers damaged § 87(2)(b)s property.

§ 87(2)(g)

It is therefore recommended that Allegations L, M, N and O be closed as Officer Unidentified.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: